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June 28, 1951

Dear Mr. Secretary:

Reference is made to the draft Japanese peace treaty received on 15 June 1951 from Mr. John Foster Dulles, special representative of the President in relation to Japanese peace treaty matters. The Joint Chiefs of Staff have considered this draft peace treaty. Their views and comments, which have my general concurrence, are forwarded herewith.

With regard to paragraphs 3 to 8, inclusive, of the Joint Chiefs of Staff comments, it is my understanding, based on a conference with Mr. Dulles, that the recommendations made by the Joint Chiefs of Staff have been under discussion between our two Departments and will present no difficulty for incorporation into the treaty.

On the question of signature of the treaty by Communist China, raised in paragraph 9 of the Joint Chiefs of Staff memorandum, it is my understanding that China will not be permitted to sign this treaty. I should appreciate your confirmation of this.

The first sentence of paragraph 10 of the memorandum indicates clearly that the Joint Chiefs of Staff would object to this treaty coming into force as between Japan and any of the allied powers until after the date of its ratification by the United States. As a result of my discussion with Mr. Dulles, I am aware of the difficulty which this point of view raises and I recognize that it may not be practicable to give the United States such unlimited control over the actions of its sovereign allies, as this sentence would seem to call for. In view, however, of serious objection raised by the Joint Chiefs of Staff, I suggest that the matter be brought to the attention of the President at the earliest possible date for resolution.

Faithfully yours,

The Honorable

The Secretary of State

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